

PLE5026: FINANCIAL REGULATORY PRACTICE

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Financial Regulatory Practice

Subject Code

PLE - Professional Legal Education

Course Number

5026

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

2

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

This course aims to provide students with an overview to financial regulatory law and practice in Hong Kong. The course provides students with an opportunity to discover practical knowledge and skills relevant to financial regulatory practice in Hong Kong and come up with creative solutions to real-life legal problem.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Apply key financial regulations and regulatory guidelines including: - Rules Governing the Listing of Securities on the Stock Exchange of Hong Kong Limited (Listing Rules); - Key provisions in the Securities and Futures Ordinance (CAP 571)(SFO); and - Key guidelines, codes of conduct and circulars issued by the Securities and Futures Commission (SFC), the Hong Kong Monetary Authority (HKMA), and the Hong Kong Exchanges and Clearing Limited (HKEx).		x	x	x
2	Apply basic knowledge and skills of financial regulatory practice, in particular in handling the following regulatory matters: - general corporate compliance and corporate governance of a listed issuer; - market misconduct; and - regulatory investigations and disciplinary proceedings.		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	1	Teaching and learning will primarily be based on short interactive discussions in both the large and small group sessions	1, 2	

Continuous Assessment (%)

0

Examination (%)

100

Examination Duration (Hours)

3

Minimum Examination Passing Requirement (%)

50

Additional Information for ATs

One written examination (CILO No. 1,2). The use of Generative AI tools is not allowed.

Assessment Rubrics (AR)

Assessment Task

Examination at the end of the Semester.

Criterion

To pass this course students must obtain a mark of 50%.

Excellent

(A+, A, A-) The work meets the client' s needs in all respects, evidenced by:

- a superior grasp of the issues and subject matter
- good organization
- a capacity to analyze and synthesize
- possession of an extensive knowledge base
- a superior use of lawyer skills.

Good

(B+, B, B-) The work meets the client' s needs in most respects, evidenced by:

- a strong grasp of the issues and subject matter
- some critical and analytical ability
- an understanding of the applicable law and procedures
- a good use of lawyer skills.

Fair

(C+, C, C-*) The work meets the client' s main needs, evidenced by:

- an adequate grasp of the issues and subject matter
- an ability to develop solutions to the client' s problems
- a basic use of lawyer skills.

Marginal

(D*)

Failure

(F) The work does not meet the client' s needs, evidenced by little or an insufficient:

- grasp of the issues and subject matter
- critical and analytical ability
- understanding of the applicable law and procedures.

Additional Information for AR

* Note: The University's grades C- and D are not used in the PCLL.

Part III Other Information

Keyword Syllabus

- Introduction to financial regulations and the regulators in Hong Kong
- General corporate compliance and corporate governance of a listed issuer
- Market misconduct
- Introduction to contentious financial regulatory practice
- SFC investigations and Stock Exchange disciplinary proceedings

Reading List

Compulsory Readings

Title	
1	Nil

Additional Readings

Title	
1	The Listing Rules
2	Disciplinary Procedures (Main Board) – Listing Matters (adopted by the Listing Committee on 20 July 1996)
3	The Securities and Futures Ordinance (Cap 571)
4	The Banking Ordinance (Cap 155)
5	Code of Conduct for Persons Licensed by or Registered with the Securities and Futures Commission (May 2006)
6	Report of the Securities and Futures Commission to the Financial Secretary on Issues Raised by the Lehman Minibonds Crisis (December 2008)
7	Report of the Hong Kong Monetary Authority on Issues Concerning the Distribution of Structured Products Connected to Lehman Group Companies (December 2008)
8	The Turner Review: A regulatory response to the global banking crisis (March 2009)